

Recording Examination Grading and Ranking Summer 2020

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Overview

Ofqual has issued consultation documents on the school or college-based assessments for the following qualifications:

- GCSEs
- AS and A levels
- Extended Project Qualifications (EPQ)
- Advanced Extension Awards (AEA) in maths

As part of these guidelines, there are considerations required for the secure handling of data as well as the accurate recording of data. This data may be required in case of data subject access requests and/or appeals by students over grades.

This document covers data handling issues related to centre assessment grades and ranks for submission to examination boards and proposes a template where schools do not have the required capability for recording this data on the MIS system and producing a report for the examination board.

Detailed procedures on examination data handling should be in place and this document does not override any such secure data processes already in place.

Process summary

Detailed information from Ofqual is available on their website and should be checked regularly for updates:

[Awarding qualifications in summer 2020](#)

However, the process summary is as follows:

1. Teachers, using evidence from existing work and assessments are to use their judgement to grade every student entered in each subject to create centre assessment grades.
2. Within each grade, teachers rank the students in order based on the expected attainment level at each grade, in each subject
3. These grades and rankings are validated by Heads of Department and Heads of Centre. Once finalised, they are submitted to the examination board

4. The examination board use this data, historical data for the examination centre and any other relevant available data to make adjustments (aligning grades across centres and historically) and setting and awarding final grades to students.

Data Requirements

The process requires access to existing student work and grades. This should be available from the MIS system. Teachers may need to ensure that they have any relevant prior work and materials available.

Documentation

For each student and subject, the following should be recorded:

- Name
- UPN
- Date of assessment
- Subject
- Sources of evidence used
- Assessed grade
- Justification for grade
- Initial assessment by
- Validated by
- Validated date
- Validation comments

This grade data should be consolidated onto a separate data sheet for ranking purposes and submission to the exam board. It is not yet clear who the examination boards expect to receive this data.

A proposed grading sheet template is provided on the Data Protection Education Knowledge Bank.

What the Data Protection Act 2018 says about exam scripts and exam marks

<http://www.legislation.gov.uk/ukpga/2018/12/schedule/2/part/4/crossheading/exam-scripts-and-exam-marks>

DPA18 Paragraph 25:

1. The listed GDPR provisions do not apply to personal data consisting of information recorded by candidates during an exam.
2. Where personal data consists of marks or other information processed by a controller
 - a. for the purposes of determining the results of an exam, or
 - b. in consequence of the determination of the results of an exam,the duty in Article 12(3) or (4) of the GDPR for the controller to provide information requested by the data subject within a certain time period, as it applies to Article 15 of the GDPR (confirmation of processing, access to data and safeguards for third country transfers), is modified as set out in sub-paragraph (3).
3. Where a question arises as to whether the controller is obliged by Article 15 of the GDPR to disclose personal data, and the question arises before the day on which the exam results are announced, the controller must provide the information mentioned in Article 12(3) or (4):
 - a. before the end of the period of 5 months beginning when the question arises, or
 - b. if earlier, before the end of the period of 40 days beginning with the announcement of the results.
4. In this paragraph, “exam” means an academic, professional or other examination used for determining the knowledge, intelligence, skill or ability of a candidate and may include an exam consisting of an assessment of the candidate's performance while undertaking work or any other activity.
5. For the purposes of this paragraph, the results of an exam are treated as announced when they are first published or, if not published, first communicated to the candidate.

Data Subject Access Requests and appeals

Examination data is subject to an exemption from usual data subject access requests under the Data Protection Act 2018 paragraph 25.

This is also mentioned on the ICO examinations page:

<https://ico.org.uk/your-data-matters/schools/exam-results/>

However, it doesn't mean that data doesn't have to be provided, rather the timeframe is different:

- a. before the end of the period of 5 months beginning when the question arises, or
- b. if earlier, before the end of the period of 40 days beginning with the announcement of the results.

Some work that is being used to assess the exam grade may well be more than 5 months old and could legitimately be released as an individual work assessment. However, data contained on the individual grading sheet should be considered as exam data and only released following the publication of grades.

The Ofqual guidance (page22 [Exceptional arrangements for exam grading and assessment in 2020](#)) is slightly ambiguous but it does seem that the information can only be disclosed under the following circumstances:

1. After the results have been disclosed
2. If someone then puts in a SAR (or under the time-limits as laid out in the DPA18 (p25(3)) **or** if you decide to give it to them.

There doesn't appear to be an obligation however, that you **must** give it to them.

Releasing the data ("centre assessment grades, rank order information, or the professional judgements which underpin them") after results day will not, according the Ofqual documentation result in an investigation of staff. However, there is an expectation that the professional judgements made should be recorded.

Accurate and balanced data, recorded appropriately will be essential in any appeal in order to review the original grading decision.

In light of the potential for appeals (which will be submitted to the examination boards, by the examination centres), consideration should be given by each individual centre as to the criteria and weighting that any piece of evidence is used to create the final assessed grade. It may be prudent to provide guidance for staff in relation to these points as any appeal or request for the justification data will have to be able to demonstrate a consistent and balanced interpretation of grades.

As students will be able to appeal their grades if they do not feel it reflects their performance, it may also warrant consideration to prepare a process for documenting and

processing appeals and potentially releasing justification data to students at the point of appeal.

This is not conditional nor does it impede any options that students have to take an exam when available.

Data Security

The DPA18 p25(2) makes it clear that previous school work and grades is counted as "an exam" and should, therefore, be treated with the appropriate security.

Any work evidence used for grading should be kept securely in the school to prevent any manipulation by the student (or prior poor grades) or by third-parties.

Grading sheets should be treated as examination data with the highest level of confidentiality and security as per exam board standards by the school's examination officer.

There must be no inadvertent disclosure or sharing of data prior to the release of grades to students.

Access to individuals subject grading and ranking should be limited to the members of staff needing to have access only.